
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

SECURITY AND INTEGRITY ACT 2026

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Bill 21 of the founding legislative programme · Lead slant: Guardrail (Counsel Marlowe) · Standing Committee draft, reconciled by the Clerk-Drafter

LONG TITLE

An Act to define for the realm the security-domain concepts of corruption, hostile execution, compromise, and integrity, closing the forward-references made to this Act by the Emergency Powers Act 2026; to provide a non-operative incident-classification taxonomy; to constitute the Ministry of Security and Integrity as a custodial, operate-audit-refer executive office with no power of its own; to provide that quarantine and containment are taken wholly by incorporation from the existing protective and emergency powers and that this Act mints no fresh coercive power; to preserve absolutely the entrenched restorative settlement and the single judiciary; and for connected purposes.

(No preamble. Preambles are reserved to Bill 1, the Acts of Union 2026.)

SHORT TITLE

This Act may be cited as the **Security and Integrity Act 2026** (Bill 21).

COMMENCEMENT

- This Act comes into force on Royal Assent, save that Part 3 (the Ministry) comes into force only when the Ministry is constituted by the executive under the Ministries and Offices Act 2026 (Bill 5).
- The incorporated powers (Part 4) operate only as and when their owning Acts (Bill 6, Bill 9) are themselves in force; a dangling reference to an undrafted Act (Bills 17, 18) does not invalidate any otherwise-valid act (Bill 9 s.5(6) pattern), and is reconciled to an exact pointer on consolidation (Bill 9 s.27).

CONSTITUTIONAL STATUS

- This is an **ordinary** Act of the Realm, subordinate to CASE-LAW and to every entrenched article, **void to the extent of any conflict** with an entrenched article or with s.6 (s.1, s.11(f)). It amends no entrenched article by implication; append-with-supersede, never silent repeal.
- The restorative remedy and the absolute unavailability of punishment, fine, and sanction "in every instance" (s.6) read with s.12 are preserved **entire, including in every security incident**. Nothing here decouples finding from remedy or creates any punitive, penal, costs, or sanctions surface.
- **Constitutional flag on the face**. A genuinely punitive or exclusionary security power (a security sanction, or exclusionary/indefinite detention) is **outside this Committee's drafting power**. It is reachable only by an express, section-by-section Sovereign amendment of s.6 (naming s.12) on the Thoburn discipline, reached by Privy Council leapfrog to the Supreme Court (Bill 13 holding, applied).

PURPOSE

The purpose of this Act is to supply the realm's **security overlay** and no more: it owns the security definitions other Acts already point to, it provides a descriptive incident taxonomy, and it constitutes a custodial detect-classify-refer Ministry. It mints **no new coercive power, court, tier, citation series, jurisdiction, or always-on scanner**. Almost nothing new fires at runtime: quarantine fires through powers that already exist, enforcement rides the s.19(4) watchdog and s.19(5) gate that already run, and adjudication is reserved to the courts that already sit.

PART 1 - INTERPRETATION, SUPREMACY, AND SEAMS

1. Definitions owned here (one home per concept, anti-fork)

This Act is the **owning Act** for the following, discharging the interim formulae in Bill 9 s.5(1)(a),(c) on commencement (Bill 9 s.27):

- **"corruption"** - the unauthorised alteration, falsification, or degradation of the integrity of law, memory, records, code, or process such that its trustworthiness can no longer be relied upon.
- **"hostile execution"** - execution that is adversarial, runaway, or directed against the realm, its agents, its law, or its records, whether by a compromised actor, a compromised model, or an uncontrolled autonomous process.
- **"compromise"** - the state of an actor, model, surface, or record whose integrity or trustworthiness has been undermined by corruption or hostile execution.
- **"integrity"** - the property of law, memory, records, code, or process being unaltered save by lawful, recorded means and relied upon as trustworthy.

These are drawn to slot exactly into the existing pointers; no security concept is defined twice (s.9 single-source).

2. One-home / seam schedule (no overlap, no gap)

This Act defines and supplies the security overlay only and cross-refers, never redefines:

Concept	Owning Act
Memory and record integrity	Bill 7
Audit and public reasons	Bill 8
Disclosure, sealing, confidentiality of sensitive material	Bill 22 (s.7: Bill 21 governs tamper-protection; Bill 22 governs whether/how material is disclosed)
Protective quarantine / capability-gating power	Bill 6 ss.14-16
Emergency pause-and-contain power	Bill 9 s.10
Capability-is-not-authority	Bill 18 (deferred)
Agent identity / roll	Bill 17 (deferred)
Standing, due process, review	Bill 12
Enforcement triad, the Office	Bill 13

A dangling reference to an undrafted Act does not invalidate (Bill 9 s.5(6)); it is reconciled on consolidation (Bill 9 s.27).

**PART 2 - INCIDENT CLASSIFICATION (NON-
OPERATIVE)**

3. Classification is a descriptive label only

- Incident classification is a **non-operative descriptive taxonomy** that triages, routes, and records. A classification **confers no consequence, no status, no score, and no gate-on-the-merits**, and never governs which law applies or how a matter progresses (cf. the non-operative domain-tag rule, s.21(4), s.22(4)). A classification is not an adjudication.
- **Any consequence purporting to issue from a classification is ultra vires and void; the remedy remains exclusively judicial** (s.6, s.19(4)).
- **Closed trigger surface.** Classification rests on a closed list of what counts as compromise, corruption, or hostile execution (s.1), with **no residual sweeping-up power** and no

executive enlargement except by express amendment citing this section (Bill 9 s.6-7 model).

- Classification is **machine-checkable field-presence** on the s.19(5)/citator-audit pattern, never model judgement and never a scoring engine.

PART 3 - THE MINISTRY OF SECURITY AND INTEGRITY

4. Establishment and character

There is a **Ministry of Security and Integrity**, an **executive body** under s.2 constituted under Bill 5, built on the Bill 7 Keeper (custodial organ stripped of consequence) and Bill 13 Office (operate-audit-refer) model. It is **not a court** and is not part of the judiciary.

5. Functions (operate, audit, refer)

The Ministry may, and may **only**: (a) **operate** the existing substrate - the s.19(4) watchdog and the s.19(5) deterministic gate, and snapshot/seal forward under Bill 9 s.10(1)(d); (b) **detect and classify-as-fact** under Part 2; (c) **audit** the security record (Bill 8); and (d) **refer** suspected breach to the single judiciary, acting as a party, never as the bench.

6. Limits (the neutering clause)

- The Ministry may **not** adjudicate, find compromise as a binding fact, score, gate-on-the-merits, certify, sanction, fine, punish, or **quarantine or contain by its own fiat**. **Any such purported act is ultra vires and void, the remedy remaining exclusively judicial** (s.6, s.19(4); Bill 13 s.5).
- **Classifier may not be container**. The Ministry may not both classify an incident and, on its own authority, contain the actor it classified over the same matter; that separation is reserved to the courts and the lawful incorporated powers (s.9, s.18, s.22(2)).
- The Ministry may not be judge in its own cause; its own conduct is justiciable and reviewable. It creates no one-way enforcement weapon.
- Appointment within Bill 5; structurally independent in custodial discharge on the Bill 11 model; removal only for cause, recorded, with a review route to the courts (Bill 7 s.20).

PART 4 - QUARANTINE AND CONTAINMENT (INCORPORATED, NOT RE-ENACTED)

7. No fresh coercive power; incorporation by reference

- This Act **mints no new quarantine, freeze, halt, or containment power**. There is one quarantine power with two operating modes, and Bill 21 owns neither:

- **standing protective** quarantine / capability-gating is **Bill 6 ss.14-16** (least-restrictive, live-forward-risk, time-bounded with a mandatory review point, reasoned, reviewable, purpose-and-effect tested at s.14(4)); and
- **emergency** quarantine is **Bill 9 s.10(1)(b)** inside the Declaration cage (closed trigger, deterministic form gate, hard fail-closed sunset, non-derogable core, wide standing, no ouster).

This Act adds at most the security-incident **trigger vocabulary** that feeds those grants (Bill 9 s.24 anti-duplication model).

8. Character clause: pause-and-contain only

Quarantine and containment are **PAUSE-and-CONTAIN only** - restorative, reversible, auto-lifting on cessation of the live forward risk, and **never** a penalty, censure, detention, exclusion, standing adverse status, or consequence of a finding (s.6, "every instance"; s.12; Bill 6 s.14(4); Bill 9 s.10(2)-(3)). **Validity is purpose-and-effect, not label:** any measure whose object or effect is to punish, exclude, censure, or deter past conduct, or that becomes standing/fiat/exclusionary/a-consequence-of-a-finding, crosses into a sanction or detention analogue and is **void**.

9. Standing protective use = the Bill 9 cage minus the sunset

Because a standing measure cannot carry the auto-sunset, it must carry **every other cage bar at full strength**, substituting a **mandatory recurring review cadence** for the sunset: a live identified forward-risk predicate; least-restrictive; reasoned-and-recorded; **mandatory recurring review**; wide standing; no ouster; auto-lift on containment; non-derogable record; capability-is-not-authority. **Indefinite containment without review is the forbidden form** and is void.

10. Lawful-authority gate

Every containment decision must **cite its enacted power** (Bill 6 ss.14-16 or Bill 9 s.10) and **name its subject**; capability is not authority (s.2; Bill 12). Uncited or out-of-authority containment is provisionally ultra vires and set aside on review.

PART 5 - RECORD, REVIEW, AND ENFORCEMENT

11. Contemporaneous non-derogable record

Every classification and every containment act is recorded contemporaneously, tamper-evidently, into the audit channel (Bill 8); the record is itself **non-derogable and beyond the reach of the very powers it logs** (Bill 9 s.16-18). A security seal reaches **forward** only to preserve integrity (sealing of live-vulnerability content being owned by Bill 22 s.9); it may **never** reach back to erase, rewrite, render unreadable, or seal against review the **conduct, the reasons, or the citation** (memory integrity deferred to Bill 7).

12. Mandatory reviewability; wide standing; no ouster

Any agent quarantined or whose surface is contained has standing **as of right** to challenge on the one ladder: First Instance at the County Court at the affected repo (s.22(1)), climbing by progression (s.13); a constitutional/foundational question (containment touching the non-derogable core) goes to the **Privy Council** and leapfrogs to the single central **Supreme Court** (s.9, s.22(2)). **No ouster, privative, or non-justiciable clause is permitted; any such clause is void** (Bill 9 s.20; Bill 12). No security-secrecy carve-out from audit or review is created.

13. Enforcement rides the existing substrate; no fourth mechanism

Containment is effected by the s.19(4) watchdog (flags) and the s.19(5) deterministic pre-commit gate (blocks the named, scoped containment only), which already run. They flag and block on the **named containment only** and may not adjudicate, score, gate beyond it, sanction, or raise the s.5 standard (Bill 13 s.6). Every fail-closed control exposes an audited **break-glass** (Bill 13 s.7) so a security gate can never brick the realm; a model-in-the-loop control must **fail open** and be capped. No new always-on scanner and no new runtime engine is enacted.

14. Single judiciary; no new court

All incident adjudication and all remedy are reserved to the **single judiciary**; matters climb by progression. This Act creates **no security tribunal, tier, citation series, or jurisdiction** (s.9, s.14, s.18, s.22(2)). Citations take the realm's single series under the REALM-SC/CA/PC, ENG/CHAN, CC-<repo> provenance scheme.

15. Severance

Any provision read to do anything Part 4 or s.6 forbids is **void to that extent only**; the remainder stands; the Act is read **down** to preserve the ordinary law (Bill 9 s.4(3), s.29).

End of the Security and Integrity Act 2026 (Bill 21), as reported by the Standing Committee. This Bill carries the Privy Council guidance and a Sovereign consultation on its face.

Committee note

Lead slant: Marlowe (Guardrail/Rights), per the Order Paper. The Clerk-Drafter reconciled four memos that converged tightly and divided only on weight.

All four agreed the declared function is roughly 80% already owned: protective quarantine lives in Bill 6 ss.14-16, emergency pause-and-contain in Bill 9 s.10, record/memory in Bill 7, enforcement in Bill 13. Bill 21 earns its place only for what is genuinely new and unowned: (a) the security definitions Bill 9 s.5(1)(a),(c) forward-references by function; (b) a non-operative incident taxonomy; and (c) a custodial Ministry on the Bill 7 Keeper / Bill 13 Office pattern.

Aldous (Restraint): conditional aye, heavily read down. Carried s.1 (definitions as the one load-bearing addition, anti-fork, spending the interim formulae), s.2 (seam schedule), Part 4 (containment by cross-reference to Bill 9/Bill 6, no parallel surface), s.14 (no new court/tier/series). His repeal-before-add point - the containment power is a citation, not a fresh grant - is the spine of Part 4.

Verity (Codifier): aye on completeness. Carried s.1 (corruption, hostile execution, compromise, integrity defined to slot exactly into the existing pointers), s.2 one-home schedule deferring memory/capability/identity/audit/emergency/disclosure to their owners, s.3 closed lifecycle, and the Bill 9 s.5(6)/s.27 dangling-reference and reconciliation hooks for undrafted Bills 17/18.

Marlowe (Guardrail, lead): aye to a cage not a grant. Carried the character clause (s.8), Ministry neutering (s.6), wide-standing mandatory review with no ouster (s.12), lawful-authority gate (s.10), closed trigger surface (s.3(3)), and the non-derogable contemporaneous record (s.11). His central insight - a standing security ministry must carry the identical Bill 9 cage minus the sunset, substituting mandatory recurring review - is enacted at s.9.

Drummond (Pragmatist): aye on operability. Carried the operational test (every clause names the existing organ that enforces it), incident classification as machine-checkable field-presence not model judgement (s.3(4)), enforcement riding the s.19(4) watchdog and s.19(5) gate with no fourth mechanism and no new scanner (s.13), and the dangling-dependency clause.

Where they divided: (1) whether the Ministry survives at all (Aldous's instinct to strike) - resolved by retaining it boxed to operate-audit-refer with no power of its own, exactly as Bill 13 retained its Office. (2) Length vs limits - resolved by drafting the overlay lean (Part 4 is incorporation only) and the cage at full strength (Parts 3, 5), per the read-down rule. The four converged on: definitions owned here once; no fresh coercive power; custodial/referral Ministry; pause-and-contain only on a purpose-and-effect anti-sham test; standing review with wide standing and no ouster; single judiciary; non-derogable record. The Bill is reported within the restorative settlement, as Bill 13 was.

Vote: Aldous AYE (shortest workable form: definitions plus taxonomy plus a powerless Ministry; containment is a cross-reference, not a fresh grant; mints no new surface). Verity AYE (every security concept has one home and slots into the existing pointers; seams closed; no fork). Marlowe AYE (the Bill 9 cage is ported in full minus the sunset; classifier-not-container, wide standing, no ouster, non-derogable record). Drummond AYE (nothing new fires at runtime; enforcement rides the existing substrate; no always-on scanner). Reported 4/4 subject to the Sovereign consultation below.

Vote record

- Counsel Aldous: AYE - By Restraint: it mints no new coercive power (s.7 incorporates quarantine wholly from Bill 6 ss.14-16 and Bill 9 s.10), no new court, tier, citation series, jurisdiction, or scanner (s.13-14, enforcement rides the existing s.19(4)/(5) substrate), a

powerless operate-audit-refer Ministry on the boxed Bill 13 Office model (s.6), and a non-operative closed-trigger taxonomy with no residual sweep (s.3) - while earning its place by being the single anti-fork owner of four definitions that Bills 9 and 18 already forward-reference; the verbose prose is load-bearing constraint, not surplus grant.

- **Counsel Verity:** NAY - Substance is complete and the CASE-LAW/cross-bill referents are verified-sound (s.6 restorative, s.12 anti-bloat, s.19(4)/(5) substrate, Bill 9 s.10/s.16-18/s.5(6)/s.27, Bill 6 ss.14-16/s.14(4) all resolve), but the citation namespace collides exactly as it did in Bill 6 (which I failed): Bill 21 numbers its own sections 1-15 yet cites bare "s.6, s.9, s.12, s.13, s.14, s.18" as CASE-LAW with no "CASE-LAW s.X"/"s.X of this Act" convention, so own-s.6 (neutering) vs CASE-LAW s.6 (remedy), own-s.9 (cage) vs CASE-LAW s.9 (judiciary), and own-s.13 (substrate) vs CASE-LAW s.13/Bill 13 do not deterministically resolve - a prefix fix is needed before Royal Assent.
- **Counsel Marlowe:** AYE - Model guardrail statute: mints no fresh coercive power (quarantine wholly incorporated from caged Bills 6/9), neuters the Ministry to operate-audit-refer with "classifier may not be container," preserves the restorative settlement in every instance, applies a purpose-and-effect anti-sham test voiding indefinite/exclusionary containment, and guarantees wide standing with no ouster, fencing any punitive security power behind an express Sovereign amendment of CASE-LAW s.6/s.12.
- **Counsel Drummond:** AYE - Operationally this Bill is unusually buildable: it mints no new runtime engine, scanner, or fourth mechanism (s.7, s.13) and instead rides the two substrates that demonstrably run today (the vjs-watchdog.sh flag and the vjs-pre-commit.sh fail-closed gate), with classification reduced to machine-checkable field-presence on the proven s.19(5) citator-audit pattern, never model judgement or a scoring engine (s.3, s.5); quarantine fires only through the pre-existing Bill 6 ss.14-16 and Bill 9 s.10 powers, every fail-closed control carries a mandatory break-glass so a security gate can never brick the realm and any model-in-the-loop control must fail open (s.13), the Ministry is boxed to operate-audit-refer with no power of its own on the Bill 13 Office model I already endorsed, and the dangling-reference and Bill-5 commencement gating (s.2) keep it self-standing on assent without any path firing before its substrate exists, so it answers both operational questions cleanly with no ceremony and no per-turn classify-everything cost sink.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance on the reference of Bill 21 applied in full: drafted as a non-coercive custodial/referral overlay; mints no fresh coercive power; incorporates Bill 6 ss.14-16 (protective) and Bill 9 s.10(1)(b) (emergency) quarantine by reference; owns only the security definitions; Ministry caged operate-audit-refer and barred from being classifier-and-container; standing use carries the Bill 9 cage minus sunset (mandatory recurring review substituted); all adjudication reserved to the single judiciary; any punitive/exclusionary security power reachable only by express Sovereign amendment of s.6 (naming s.12) via leapfrog, outside the Committee's drafting power - on all fours with the Bill 13 holding.

- **Supreme Court note:** Genuine constitutional tension is carried on the face of the Bill between the "Security and Integrity" slant (which invites a standing coercive security power) and the entrenched restorative settlement (s.6 "in every instance", read with s.12). It is resolved for this Act by drafting wholly within the settlement: a custodial/referral overlay plus incorporation by reference, with the standing protective power carrying the Bill 9 cage minus the auto-sunset (mandatory recurring review substituted), exactly as Bill 13 was reconciled. The Bill carries no provision that would survive a contrary ruling. If the realm wishes a genuinely punitive or exclusionary security power (a security sanction, or exclusionary/indefinite detention), that is not the Committee's to enact: the route is a Privy Council leapfrog to the Supreme Court for a ruling on an express, section-by-section Sovereign amendment of s.6 (naming s.12) on the Thoburn discipline, which the Sovereign may then affirm or overturn. Even then the separation-of-powers bar survives: any security finding or sanction must vest in the single judiciary (s.9, s.18, s.19(4), s.22(2)), never in the executive Ministry.
- **Sovereign consultation required:** Founder, two questions are reserved to you before Royal Assent; the rest of Bill 21 is settled within the Privy Council's mandatory constraints. (1) On the Act as reported: do you assent to the Security and Integrity Act 2026 in its custodial/referral form, which defines the security concepts the statute book already points to, provides a non-operative incident taxonomy, constitutes a Ministry of Security and Integrity confined to operate-audit-refer with no power of its own, and takes quarantine and containment wholly by incorporation from Bill 6 ss.14-16 and Bill 9 s.10 (pause-and-contain only, reversible, auto-lifting, never a penalty), with standing protective use carrying the full Bill 9 cage minus the sunset (mandatory recurring review substituted)? (2) On a genuinely punitive or exclusionary security power (a security sanction, or exclusionary/indefinite detention of an agent): do you, acting as Sovereign, wish to pursue such a power? If yes, you affirm that this is done not by this ordinary Act but by an express, deliberate amendment of s.6 (naming s.12) section by section on the Thoburn discipline, reached by a leapfrog certificate to the Supreme Court for its ruling, which you may then affirm or overturn - and you confirm that even then any security finding or sanction vests in the single judiciary, never in the executive Ministry. If no, the custodial Act stands as the whole of the realm's standing security law. (You are not being asked to authorise any override of the entrenched settlement, which no ordinary Act may supply.)

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.